DAVID SYLVESTER MAZAMBANI
Versus
HATIWANDI ZINYAKATIRA
and
PROVINCIAL MINING DIRECTOR MINISTRY OF MINES
and
MINING DEVELOPMENT N.O MASHONALAND WEST PROVINCE

THE HIGH COURT OF ZIMBABWE
BACHI MZAWAZI J
CHINHOYI, 12/19 February 2026

Civil Opposed Court Application

M. Bumhira for the applicant
N. Rwizi for the 1st respondent
No appearance for 2nd and 3rd respondents

BACHI MZAWAZI J: [1] This is yet another farmer and miner dispute. The applicant and the 1st respondent both have prima facie legally recognised rights. The 2nd and 3rd respondents are mines and minerals regulatory authorities.

[2] The applicant by virtue of an offer letter has farming agricultural rights over subdivision No. 5 Derus of the Downs Farm Chegutu. The farm measures 147.8 hectares. The 1st respondent on the other hand has held a mining registration number 16645, over 15B mining claim since 2018.

[3] These two protagonists have co-existed for over seven years each minding their own business.[1] Due to the now familiar inherent conflict between farmer and miner, their relationship has not been free of incidences that eventually ended with resolutions from the 2nd 3rd respondents' offices.[2]

[1] Paragraphs 9 and 12 of the applicant's affidavit
[2] A letter dated 16 August 2018 from the 2 and 3rd respondents, a dispute resolution between the applicant and 1st respondent.

[4] It is not surprising that one of those disputes has found its way before this court, in the form of an application for a declaratory order sought by the applicant against the first respondent.

[5] The cause of action as reflected in paragraphs 10 and 13 of the founding affidavit is that the 1st respondent was issued with a mining certificate in 2018 by the 2nd respondent without complying with the requirements of s97, as read, with the first schedule section 97 of the Environment Management Act (Chapter 20:27). That is, the certificate was issued and mining operations commenced before the acquisitions of an Environment Impact Assessment Certificate (EIA) by the 1st respondent.

[6] Following that, the applicant is seeking the nullification of the mining certificate and the attendant mining rights through a declaratory order brought in terms of section 14 of the High Court Act, [Chapter 7:06].[3] The applicant's argument hinges basically on the 1st respondent's mining activities in the absence of an Environment Impact Assessment Certificate, which never came into existence from the onset.

[7] Although reference has been made to livestock dying due to the unprocedural activities which are not guided by the Environment Management Authority regulations, no evidence has been placed before the court as to the link of the deaths to the 1st respondent's mining operations. There is a bald statement in paragraph 13 of the founding affidavit of livestock that had perished in the seven-year lifespan of the mining operations. Several cases have been relied upon, in support of the applicant's application, chief amongst them being the *Sandawana Mines (Private) Limited* v *The Mining Commissioner, Midlands Province and* others HH539/23.

[8] In opposition the 1st respondent has raised two preliminary points, on locus standi and prescription. They argued that s14 of the High Court Act, agreeably, speaks to *locus standi.* As such, the applicant lacks the requisite locus standi to invoke the provisions of s14, as they lack a direct and substantial interest in the issues surrounding the issuance of an Environment Impact Assessment Certificate. They contend that agricultural rights alone do

[3] **High Court may determine future or contingent rights**
The High Court may, in its discretion, at the instance of any interested person, inquire into and determine any existing, future or contingent right or obligation, notwithstanding that such person cannot claim any relief consequential upon such determination.

not *mero mutu* accord the farmer locus standi over the affairs of the miner if they are not interfering with the farmers rights and interests.

[9] As regards the second issue, they advance that the action to invalidate the mining certificate has prescribed in terms of s58 of the Mines and Minerals Act [Chapter 21:05]. Noticeably, the arguments on the merits of this matter revolve on whether or not the relief sought should be granted.

Analysis

Whether or not the applicant has locus standi to institute these proceedings?

[10] I agree with *Mr Bumhira* for the 1st respondent that section 14 of the High qualifies the person or entity who can invoke its provision so as to benefit from a declarator. Simply put, it also speaks to locus standi. As interpreted by caselaw, to succeed the applicant must demonstrate that they have a real, direct and substantial interest in the subject matter of the case.[4] The interest must not be remote, hypothetical or academic.[5] The interest must concern, existing, contingent and future rights. The person or entity seeking the protection of the proviso, that is s14, above must also establish that they will be affected adversely or otherwise by the outcome of the relief sought.[6]

[11] In the context and subject matter of this case, after careful assessment of both written and oral submissions from both sides, the applicant has not been able to successfully demonstrate his direct and substantial interest in this case. He has failed to illustrate and substantiate how his agricultural rights, current, future or contingent, direct or indirectly, have been interfered with or violated by 1st respondent's lack of an environmental impact assessment certificate.

[12] More importantly, when the applicant has peacefully co-existed with the 1st respondent for a good seven years. The only friction, of significance, they had was in 2018, as evidenced by the resolution of 16 August 2018, when the parties tested each other's muscles. The farmer had had a rude awakening of intrusion on his farm sanctioned by the Mining laws of this land. He learnt the hard way that land rights do co-exist with mining rights. Through that resolution, parameters upon which each part was to operate and observe

[4] Antony hickey v DMC Holdings PL and Christmas Gift PL and Others SC17/14.
[5] Matipano v Gold Driven Investments SC19/14.
[6] Barend van Wyck v Tarcon (Pvt) Limited SC49/14

were delineated. These, as well spelt out in that dispute resolution included safeguards to protect livestock and the land amongst other factors. Most of what was resolved in that letter was implemented and adhered to, hence the seven-year rapport.

[13] It is a principle of the law that the applicant's case stands or falls on its affidavit,[7] The applicant whilst mentioning that he has lost several beasts over the seven-year lifespan of their existence did not specify how the 1st respondent is responsible for that loss. No actual figures, no veterinary records nor medical proof was attached to the applicant's papers. Without such evidence to buttress such allegations they remain unsubstantiated bald averments. Applicant does admit that there is a barbed wire fencing and demarcating the mining operations from those of the farm, but says they are not of the standard specified by the Environment authorities. He did not allege breach of those barriers by his livestock at any given point to prove their ineffectiveness.

[14] No evidence on cyanide or other contaminants seepage has been proffered. The evidence of either any one or a cumulation of the above would have naturally accorded the applicant a good footing and a direct substantial interest in the affairs of the 1st respondent. In my well-considered view, what gives a person locus standi is multifaceted and context specific. It is for the court to determine governed by the circumstances of each case. It does not necessary mean that if you have agricultural rights then you have unfettered nosy poky interests in the affairs of the miner's rights that are not infringing yours.

[15] In this case, the obtaining of an environmental impact assessment certificate and the mining certificate are legal processes involving the 1st, ,2nd and 3rd respondent, the Environment authorities. These are the key players who, if everything is equal act, within the ambit of the laws and regulations that govern them. If the procedural steps in the acquisition of the above steps are not followed or complied with, then the administrative or regulatory authorities are statutorily equipped and empowered to address such omissions or violations according to the laws that created them. If at all a third party outside the sphere above, is aggrieved, they trigger the mechanism to compel either regulatory body to address the

[7] See Herbstein & van Winsen the Civil Practice of the Superior Courts in South Africa 3rd ed p 80, Alfred Muchini v Elizabeth Mary Adams and Ors

breach. From that angle it is one of the said regulatory authorities who has the requisite locus standi to then bring a legal suit of this nature.[8]

[16] It is from this perspective that I fail to comprehend the applicant's business in the procedural steps of the 1st respondent involving the non- issuance or lack thereof of an EIA without any evidence of how such absence of the certificates has affected or will affect him after a seven year long stay. This is where my discretion spelt out in s14 of the High court Act, comes into play. I am not persuaded to exercise that discretion in favor of the applicant. The facts and evidence as assed above do not allow me.

[17] Whilst the law is well settled in respect of what comes first the issuance of a mining certificate and the environment impact assessment certificate, the issue in the circumstances of this case is, of what relation is the Environmental Impact Assessment certificate and the applicant, farmer or holder of agricultural rights in the absence of proof of any tangible harm, or threat, present or in the future of the latter's rights?

[18] Respectfully, yes, the law as pronounced in the *Sereptia Resources (Private) Limited v. Ariston Holdings (Private) Limited and Related Parties* SC 40/25, with cases cited therein, makes it illegal to commence any mining activities, as well as, the obtaining of a mining certificate without firstly acquiring the Environmental Impact Assessment EIA.

[19] In this case, this is applicant's cause of action. The relief sought is a declaration of invalidity of the certificate. Applicant has not shown how the outcome of the order will affect them when they have not challenged their instrumental role in sabotaging the applicant's efforts to obtain the requisite certificate as is evident on record.

[20] In *Allied Bank Limited v Celeb Dengu and Wilson Tendai Nyabonda* *S*C52/16 - MALABA DCJ, as he then was, highlighted that

> It is quite clear that the question of *locus standi* does not arise in the present case for the following reason. The principle of *locus standi* is concerned with the relationship between the cause of action and the relief sought. Once a party establishes that there is a cause of action and that he/she is entitled to the relief sought, he or she has *locus standi*.

Disposition

[8] Mines and Minerals Act, Chapter 21:05 see sections 50 and 58, Environment Management Act, Chapter 20:27.

[21] I cannot help but circumscribe to the above dictum and conclude that, in so far as, the cause of action and relief sought in this matter are concerned the applicant demonstrably lacks locus standi to initiate these proceedings. It is an academic or hypothetic interest rather than a legitimate interest. I also agree with *Mr Bumhira* for the 1st respondent that this *point in limine* is dispositive of this matter without going into the merits.

Accordingly, the application is dismissed with costs.

Chamutsa and Partners, Applicant's Legal Practitioners
Mutindi and Bumhira, 1st Respondent's Legal Practitioners